

Bhagwat Singh vs Rani on 25 March, 2025

THE COURT OF SH. ANKIT MITTAL: CIVIL JUDGE-01:
SOUTH WEST DISTRICT: DWARKA COURT: NEW DELHI

Unique case ID No: 381/24
CNR NO. DLSW030006362024

IN THE MATTER OF :

Shri Bhagwat Singh
S/o Sh. Har Kishan
R/o Ground Floor,
RZH-63A, Gali No.9, Raghu Nagar,
New Delhi-110045

...Plaintiff

VERSUS

Ms. Rani
W/o Late Raj Kumar
D/o Sh Phool Chand
R/o H.No.7B/2, Hans Enclave
Vill. Naharpur, NH-8,
Gurugram, Haryana-122022

...Defendant

Date of filing : 17.08.2020
Date of Institution : 19.03.2024
Date of pronouncing judgment : 25.03.2025.

SUIT FOR MANDATORY AND PERMANENT INJUNCTION
AND FOR RECOVERY MESNE PROFIT.

JUDGMENT.

By this judgment this Court shall dispose off a suit for mandatory and permanent injunction and for recovery mesne profit filed by the plaintiff against the defendant. Before adjudicating upon the issues framed in the present suit, it necessary to dwell upon the plethora of pleadings in the present suit.

1. It is averred in the plaint that the plaintiff is the

Digitally sig
ANKIT MITTAL
by ANKIT

MITTAL Date: 2025.03.25
16:57:56 +0530

Civil Suit No. 381/24 Judgment dt. 25.03.2025 Page no. 1 of 31
landlord/owner of three storied house property bearing No.

RZH-63A, Gali No.9, Raghu Nagar, New Delhi-110045, measuring 50 sq Yards out of Kh. No 18/23 situated at in the revenue estate of village Dabri, Delhi.

2. It is averred in the plaint that the plaintiff purchased the property from one Rishal Singh S/o Har Lal, Om Prakash S/o Hari Singh, Niader S/o Rizak Ram all R/o Village Dabri, Delhi Estate on 17.11.1980 for consideration.
3. It is further averred that the plaintiff purchased this property out of his own income. He constructed his house upto three stories. He has three sons and two daughters. He got married all his children. He even brought up his three nieces namely Ms. Jyoti, Vandana & Gunjan. It is relevant to mention here that the plaintiff was employed with Indian Post and retired as Clerk on 31.05.2019. The plaintiff got married his nieces namely Jyoti and Gunjan. Gunjan got married on 14.02.2020. The plaintiff bore all the marriage expenses of his niece Gunjan.
4. It is averred that since defendant marriage with the son of the plaintiff, plaintiff allowed the defendant to live in one room set on the first floor of his house bearing No. RZH-63A, Gali No.9, Raghu Nagar, New Delhi-110045, measuring 50 sq Yards out of Kh. No 18/23 situated at in the revenue estate of village Dabri, Delhi, more clearly shown in site plan and photograph attached with the plaint.
5. It is further averred that the defendant used to come to suit property only for one day per week. The plaintiff and his son requested the defendant to live with his son permanently but the defendant never acceded to their

Digitally signed
by ANKIT

ANKIT MITTAL

Date:

MITTAL 2025.03.25

16:58:06

+0530

- Civil Suit No. 381/24 Judgment dt. 25.03.2025 Page no. 2 of 31
- requests. The husband of defendant was not at all happy with her behavior and due to continue tension, he suffered heart attack and died on 25.02.2016. At the time of defendant marriage with the son of plaintiff, it was told that the defendant was running a beauty parlor in Gurugram and earning more than 25,000/- per month and assured the plaintiff and her husband that after marriage the defendant would shift the same in Delhi. But despite assurance, the defendant did not accept the request of the plaintiff and continued to run her parlor at Gurugram.
6. It is further submitted that the defendant has never resided permanently in the accommodation i.e. one room, Kitchen, toilet and bathroom on the first floor of the property bearing no. RZH-63A, Gali No.9, Raghu Nagar, New Delhi-110045, measuring 50 sq Yards out of Kh. No 18/23 situated in the revenue estate of village Dabri, Delhi of

plaintiff. After death of son of the plaintiff namely Raj Kumar on 25.02.2016, the defendant has visited the licensed accommodation rarely. The defendant has locked the suit property just to extort some money from the plaintiff.

7. It is further averred that that the plaintiff needs the accommodation occupied by the defendant for their own use. It is further submitted that in the vicinity of the property of plaintiff, similar property/one room set, which the defendant have kept locked since 2016 could fetch more than Rs. 6,000/- per month to plaintiff. The defendant has kept the same locked to harass and to extract money from the plaintiff, which the defendant is not entitled to.

Civil Suit No. 381/24 Judgment dt. 25.03.2025 Page no. 3 of 31

8. It is further averred that the defendant had been harassing the plaintiff for money. The defendant had been insisting the plaintiff to sell out his house and give her share. The defendant had created scenes, whenever she visited the plaintiff at Raghu Nagar house. The plaintiff has made written complaint dt.11.12.2019 to SHO PS Sagarpur.
9. Lastly on 18.07.2020, the defendant visited plaintiff house to threatened him to kill him and implicate plaintiff, his other family members including his younger sons namely Sohan Lal & Satya Pal in false criminal cases of heinous nature, if her demands of money/separate accommodation was not met. The plaintiff/ his son have also made separate written complaints dated 19.07.2020 & 22.07.2020 to SHO PS Sagarpur to this effect.
10. It is averred that the plaintiff is not interested to allow the defendant to keep locked the accommodation given to her, anymore and terminate the license granted to her out of love and affection. The plaintiff has also disowned the defendant and her daughter from inheritance by publication. It is also submitted that the plaintiff has come to know that the defendant have approached property dealers in the area and the defendant are trying to hand over possession of the said property in her possession by selling the same. In fact the defendant is not residing in the suit property since 09.07.2016 and kept her locks in the suit property. The plaintiff requested the defendant to vacant the suit property and handover the physical possession suit property to the plaintiff but of no use. The plaintiff got sent and served a legal notice dated

Civil Suit No. 381/24 Judgment dt. 25.03.2025 Page no. 4 of 31

21/07/2020 on her known address by speed post and on her WhatsApp number. It is also submitted that the defendant through her counsel has replied the legal notice sent to her vide reply dated 11.08.2020 received on 12.08.2020.

11. It is further averred that as the plaintiff is not willing to permit the defendant to continue with the permission/ license to reside in the suit property and terminated the

license vide legal notice dated 21.07.2020, the defendant is liable to pay the mesne profits for use and occupation of the suit property @ Rs.6,000/ per month to the plaintiff.

12.Resultantly, plaintiff filed the present suit with the following reliefs:

- a) Mandatory injunction thereby directing the defendant, her assignees, or any other person found in possession on her behalf etc. to remove her house hold articles, furniture, belonging etc. from one room, Kitchen, toilet cum bathroom on the first floor of the property of plaintiff property bearing No. RZH-63A, Gali No.9, Raghu Nagar, New Delhi, built on plot measuring 50 sq. Yards out of Kh. No 18/23 situated at in the revenue estate of village Dabri, Delhi. More specifically shown in red colour in the attached site plan.
- b) For recovery of mesne profits @Rs.6,000/- per month from the termination of license vide legal notice dated 21.07.2020 till vacating the suit property.
- c) Permanent Injunction thereby restraining the defendant, her agents, servants, relatives etc. from parting with possession of the suit property more specifically shown in red colour and interfering in the peaceful enjoyment of the

Civil Suit No. 381/24 Judgment dt. 25.03.2025 Page no. 5 of 31
remaining portion of the First Floor of the property bearing property bearing No. RZH-63A, Gali No.9, Raghu Nagar, New Delhi, built on plot measuring 50 sq. yards out of Kh. No 18/23 situated at in the revenue estate of village Dabri, Delhi, more specifically shown in green colour in the attached site plan,
d) Any other relief

13.Defendant has appeared and filed the Written Statement.

In the Written Statement, it is submitted that the Suit under reply, which has been filed at the behest of Plaintiff, is nothing but a bundle of lies and grossly misconceived notions which has no legal standing at all and the same has been made to deny lawful rights of the Defendant and her daughter.

14.It is further submitted that the present Suit is liable to be dismissed on the ground alone that no element of Cause of Action has been demonstrated or set forth by the Plaintiff in the present Suit.

15.It is submitted that, it is the Plaintiff and his other family members who have been harassing Defendant as well as her daughter with malafide intent to deny the rights of their husband/ father in the ancestral property which cannot be permitted in the eyes of law.

16.It is further submitted that the present Suit is a piece of clever drafting wherein the Plaintiff has tried to give a colour of a cause of action which, in fact, does not exist in reality. Hence, the present Suit is liable to be dismissed out rightly. It is submitted that the Plaintiff does not have either any locus or clear right to institute the present suit.

Civil Suit No. 381/24 Judgment dt. 25.03.2025 Page no. 6 of 31

17. It is submitted that by stretch of any imagination, the premise in dispute cannot be stated to be a licensed premises in as much as the same is nothing but the "matrimonial home" of the Defendant. It is submitted that it is an admitted fact at the instance of plaintiff only that Defendant and her daughter have been illegally and unlawfully ousted from the demised premises and have been ignored from their basic, customary, constitutional as well as statutory rights. It is stated that the Plaintiff shall not at all be allowed to take away various customary, constitutional as well as statutory rights given under Cr.P.C, C.P.C, Hindu Marriage Act, Domestic Violence Act etc to the Defendant and her daughter.
18. It is further submitted that the Defendant has a rightful claim over the suit property as it being the matrimonial home of the Plaintiff's son and the Defendant, wherein they cohabited after the solemnization of their marriage, and the Plaintiff shall not be allowed to dispossess Defendant as well as her daughter from their lawful possession and right over the property in the garb of the claim of permissive license. It is further submitted that the Plaint filed by the Plaintiff is clearly depicting that the Plaintiff is trying to escape from his obligations/ responsibilities as well moral duties to maintain the wife of his son and her daughter who is also the Plaintiff's Granddaughter.
19. It is further submitted that as according to Section 2(s) of Protection of Women from Domestic Violence Act, 2005, the Defendant herein has all the rights to live in her

Civil Suit No. 381/24 Judgment dt. 25.03.2025 Page no. 7 of 31
matrimonial home along with her daughter.

20. Further, it is submitted that, as according to Section 19 of the Hindu Adoption and Maintenance Act, 1956, Defendant and her daughter is entitled to be maintained by Plaintiff after the unfortunate and sad demise of Defendant's husband who was also the Plaintiff's son and the same cannot be denied by the Plaintiff.
21. It is submitted that contents of the Plaint are wrong, false and hence denied. It is submitted that the son of the Plaintiff was the husband of the Defendant herein and was residing in the same address before his unfortunate and sad demise. It is pertinent to mention herein that soon after the demise of the husband of the Defendant, the Plaintiff herein alongwith other members of the family started harassing the Defendant herein and forced her to leave her matrimonial home alongwith her minor daughter. Further, it is denied that the Defendant used to come to Suit property only for one day per week. It is further denied that the Plaintiff and his son requested the Defendant to live with his son permanently but the defendant never

accessed to their requests. It is vehemently denied that the husband of Defendant was not at all happy with her behavior and due to continued tension, he suffered heart attack and died on 25.02.2016. It is further submitted that after the solemnization of marriage of the Defendant with the son of the Plaintiff, they both cohabited together in the aforesaid premises and hence the same is the matrimonial home of Defendant and the Defendant cannot be ousted from the same. It is submitted that the Plaintiff since the

Civil Suit No. 381/24 Judgment dt. 25.03.2025 Page no. 8 of 31

very inception of marriage knew that Defendant has a beauty parlour in Gurugram vide which she earns Rs. 15,000/- per month. It is further submitted that the Petitioner always had a knowledge of the fact that the shop cannot be shifted to New Delhi and he even agreed for the same. It is further stated that there was no assurance given from the side of Defendant and the decision of the Defendant was respected and appreciated by the Plaintiff's son which was not acceptable to the Plaintiff. It is denied that the Defendant has never resided permanently in the accommodation i.e. one room, kitchen, toilet and bathroom on the first floor of the property bearing no. RZH-63A, gali no.9, Raghu Nagar, New Delhi-110045, measuring 50 sq. yards out of kh. No 18/23 situated at in the revenue estate of village Dabri, Delhi of Plaintiff. It is denied that after the death of son of the Plaintiff namely Raj Kumar on 25.02.2016, the Defendant has visited the licensed accommodation rarely. It is further vehemently denied that the Defendant has locked the Suit property just to extort some money from the Plaintiff. It is submitted that the above-mentioned one room set is a matrimonial home of Defendant where she cohabited with her husband, i.e., the Plaintiff's son after the solemnization of their marriage and cannot be treated as licensed premises by stretch of any imagination. It is further submitted that the Defendant after her marriage lived continuously in the demised premise however, after the sad and unfortunate demise of Plaintiff's son, the Plaintiff herein in connivance with other family members started ill treating the Defendant and her

Civil Suit No. 381/24 Judgment dt. 25.03.2025 Page no. 9 of 31

daughter and forced her to leave the premises.

22.It is further submitted that the daughter of the Defendant also has all the right to be maintained by the Plaintiff, being her granddaughter and the Plaintiff cannot shy away from such responsibility after the death of her father, i.e., the son of the Plaintiff. It is further submitted that defendant after the death of Plaintiff's son, i.e, her husband, has only been requesting for support from Plaintiff to take care of herself and her minor daughter. However, the Plaintiff herein malafidely in connivance with other family members, tortured the Defendant and her

daughter and forced them to leave the above-mentioned premises, which indeed is also the matrimonial house of the Defendant. It is vehemently denied that the Defendant visited Plaintiff's house to threaten him to kill him and implicate plaintiff, his other family members including his younger sons namely Sohan Lal & Satya Pal in false criminal cases of heinous nature, if her demands of money /separate accommodation was not met. It is denied that the Plaintiff has also disowned the Defendant and her daughter from inheritance by publication. It is submitted that by stretch of any imagination, Defendant and her daughter cannot/shall not be stated to be provided with any kind of license by the Plaintiff, to live in the said property, in as much as, the same is the matrimonial home of the Defendant. It is denied that the Defendant is not residing in the suit property since 09.07.2016 and kept her locks in the suit property.

23. Issues were framed as under:

Civil Suit No. 381/24 Judgment dt. 25.03.2025 Page no. 10 of 31

1. Whether the property bearing no.RZ-H-63A, Gali No.9, Raghu Nagar, ad-measuring 50 sq.yds out of khasra no.18/23 situated in the revenue of village Dabri, New Delhi-110045 (in short, the said property) is the self acquired or ancestral property of the plaintiff? OPD
2. Whether the defendant is having right of ownership over one room set situated in the said property (in short, the suit property) being her matrimonial home? OPD
3. Whether the defendant is a licensee of plaintiff in respect of the suit property? OPP
4. Whether plaintiff is entitled to get permanent injunction, as prayed for? OPP
5. Whether plaintiff is entitled to get mandatory injunction, as prayed for? OPP
6. Whether plaintiff is entitled to get mesne profit at the rate of Rs.6,000/-p.m. for use and occupation of the suit property w.e.f. termination of licence of defendant through legal notice dated 21.07.2020 till handing over the possession of the suit property?
7. Relief.

24. The plaintiff has examined two witnesses on his behalf i.e. the plaintiff Sh. Bhagwat Singy who stepped into the witness box and examined himself as PW1. In his testimony, PW1 tendered his evidence by way of affidavit being Ex.PW1/A and he reiterated the contents of the plaint and also relied upon the following documents:
- 1) Copy of GPA, Agreement to sell, affidavit are Ex.PW1/1 (colly) (OSR).
 - 2) Copy of receipt dt. 17.11.1980 is Ex.PW1/2 (OSR).
 - 3) Copy of aadhar card, Voter I card, Pensioner I card, Sr.

Civil Suit No. 381/24 Judgment dt. 25.03.2025 Page no. 11 of 31
Citizen card and PAN card are Ex.PW1/3 (Colly) (OSR).

- 4) Site plan is Ex.PW1/4.
- 5) Copy of complaint dt.11.12.2019 is Ex.PW1/5 (Duly stamped seen and returned).
- 6) Copy of complaint dt.19.07.2020 and 22.07.2020 are Ex.PW1/6 (colly) (Duly stamped seen and returned).
- 7) Copy of legal notice, receipt and registered cover are collectively Ex.PW1/7(colly).

25. In the cross-examination, he deposed as under:

"I had five children out of which one has expired and now there are four children. Now I have two sons and two daughters. I alongwith my two sons are presently living in the building of which suit premises is part. No one except the above mentioned are living in the building. My both the sons are married and have children. Both have two children each. Both sons are living alongwith their wives and children in the same building. Both have their separate kitchens. It is correct that the defendant after marriage came to the suit premises alongwith my eldest son. It is correct that I permitted them to live in the suit premises. My eldest son is having one daughter. I do not remember when the daughter of eldest son took birth. She was born in the suit property while defendant was living in the suit property. Daughter of defendant might be age of 8 to 9 years. My family is a joint family. (vol- my both the son are living alongwith their family separately). The witness is shown his complaint dt. 11.12.2019 Ex.PW1/5 to which the witness states that I have mentioned that I have given one room each to my three sons. I know the contents of my evidence affidavit Ex.PW1/A. I can understand the English a little bit. The witness is shown para 8 of Ex.PW1/A. It is correct that I have not placed on record any document showing demand of money by the defendant. I signed my evidence affidavit Ex.PW1/A before Oath commissioner. It is wrong to suggest that the evidence affidavit Ex.PW1/A was not signed before the Oath commissioner. It is wrong to suggest that the suit premises in question is shared house hold of the defendant. It is wrong to suggest that I am deposing falsely and I have filed the present suit to harass the defendant and her daughter."

Civil Suit No. 381/24 Judgment dt. 25.03.2025 Page no. 12 of 31

26.PW2 Sh. Ratan Lal, S/o. Late Sh. Dina Ram has tendered the evidence by way of affidavit which is Ex.PW2/A and also identified his signatures at point A and B on the document Ex.PW1/1.

27.In the cross-examination, he deposed as under:

"I do not know the English language in which my evidence affidavit has been drafted, however, the counsel had explained the contents to me and then I signed the same. It is wrong to suggest that affidavit has not been

read over to me and I was wrongly made to sign the same. At this stage, the witness is shown the para 2 of his evidence affidavit i.e. Ex.PW2/A and after seeing the same, he states that the contents of para no.2 is true. It is correct that no documentary proof qua the purchase of plot done by me has been filed on record. Presently, I am retired Govt. servant, however, I used to work in Govt. of India Press, Maya puri Delhi. At this stage, the witness is shown the para 5 of his evidence affidavit i.e. Ex.PW2/A and after seeing the same, he states that the contents of para no.5 is true. It is correct that no documentary proof qua tenancy of my property has been filed by me on record. It is correct that I have rented out my premises mentioned in the para no.5 of evidence affidavit to one Sh. Manohar Lal and not to my children. It is wrong to suggest that I am deposing falsely".

28.The defendant has examined one witness i.e. Smt. Rani, the defendant who stepped into the witness box and examined herself as DW1. In her testimony, DW1 tendered her evidence by way of affidavit being Ex.DW1/A and he reiterated the contents of the WS.

29.In the cross-examination, he deposed as under:

"I am 12th pass. I am running a shop of beauty parlour. I am running the shop since before my marriage. I know english little bit. I do not know the contents of affidavit DW-1/A. I am living with my parents at the address given above. I do not know if plaintiff is the owner of suit

Civil Suit No. 381/24 Judgment dt. 25.03.2025 Page no. 13 of 31
property. I have not filed any case against the plaintiff. It is correct that I have not regularly resided in the suit property. (Vol. I cannot travel to Gurugram for earning my livelihood for self and my daughter). It is wrong to suggest that plaintiff or his family have never ill treated me. It is wrong to suggest that I have made false complaints against the plaintiffs or his family members or that I have called anti-social elements to threaten the plaintiff. It is correct that my father in law permitted me to live in the suit premises. It is correct that I am surviving on the income from my beauty parlour business. It is wrong to suggest that I have made false allegations against the plaintiff. It is wrong to suggest that I am deposing falsely".

30.DE was closed on 26.10.2024 and final arguments were heard.

Issue-wise findings as under:

31. ISSUE NO.1: Whether the property bearing no.RZ-H-63A, Gali No.9, Raghu Nagar, ad-measuring 50 sq.yds out of khasra no.18/23 situated in the revenue of village Dabri, New Delhi-110045 (in short, the said property) is the self acquired or ancestral property of the plaintiff?
OPD

32. It has been contended on the behalf of the defendant that the suit property is the ancestral property, therefore plaintiff doesn't have absolute right over it, hence it was submitted that plaintiff's suit for mandatory injunction should be dismissed solely on this ground only.
33. It is relevant to mention here that, it is a well settled principle of law of evidence which enjoins upon the party to prove the fact which he relies on and in that sense, an obligation is cast upon the party and if he fails to discharge that obligation, adverse consequences will follow and will have to face the repercussions of the same. Thus, the onus to prove that suit property is the ancestral property was

Civil Suit No. 381/24 Judgment dt. 25.03.2025 Page no. 14 of 31
upon the defendant to prove. Pertinently, defendant has failed to lead any evidence be it oral or documentary for proving her contention that the suit property is ancestral property and she has also equal ownership right over it.

34. At this point, it is relevant to mention the judgment passed by the Hon'ble Supreme Court of India in the case titled as "A. B. Govardhan Vs. P. Ragothaman Civil Appeal Nos. 9975-9976 of 2024 @ SLP (Civil) Nos. 5034-5035 of 2019 wherein it has discussed the principles of appreciation of Law of Evidence. The relevant paragraphs are reproduced herein as under:
"...Fact remained that the respondent admitted to having

executed Exhibit P-1 (the Agreement) and that the signature(s) thereon were his, in the Proof Affidavit dated 01.03.2010 as also cross examination dated 08.03.2010. No doubt, he (respondent) has denied its voluntary execution and contended that it was under coercion and threat, but no evidence was brought or led by him to support this plea. The Division Bench opined, correctly, that "It is true that there was no supporting evidence adduced by him to show as to how he was threatened and forced to execute Ex.P1."

Pausing here, we may emphasize that for every fact which is pleaded, there has to be evidence, either oral or documentary, to substantiate the same. A bald averment or mere statement by a defendant bereft of evidentiary material to back up such averment/statement takes such defendant's case nowhere. While deciding a statutory appeal under Section 116A of the Representation of the People Act, 1951 against an order of the Gauhati High Court rejecting an Election Petition, this Court in Kalyan Kumar Gogoi v Ashutosh Agnihotri, (2011) 2 SCC 532 commented that the term 'evidence' is used colloquially in different senses:

"33. The word "evidence" is used in common parlance in three different senses: (a) as equivalent to relevant, (b) as equivalent to proof, and (c) as equivalent to the material, on the basis of which courts come to a conclusion about Civil Suit No. 381/24 Judgment dt. 25.03.2025 Page no. 15 of 31 the existence or non-existence of disputed facts. Though, in the definition of the word "evidence" given in Section 3 of the Evidence Act one finds only oral and documentary evidence, this word is also used in phrases such as best evidence, circumstantial evidence, corroborative

evidence, derivative evidence, direct evidence, documentary evidence, hearsay evidence, indirect evidence, oral evidence, original evidence, presumptive evidence, primary evidence, real evidence, secondary evidence, substantive evidence, testimonial evidence, etc."

35. It is further to place reliance upon the landmark judgment of the Hon'ble High Court of Delhi passed in the case titled as "Sagar Gambhir vs Shri Sukhdev Singh Gambhir And Anr." 241 (2017) DLT 98 (DB) wherein the discussed the concept of HUF after the enactment of, "the Hindu Succession Act, 1956." The relevant paragraphs are reproduced herein as under:

"6. What is an HUF, how does an HUF come into existence, how can the properties be the properties of HUF and whether ancestral properties are HUF properties are aspects which I have considered in detail in the judgments in the cases of Sunny (Minor) & Anr. Vs. Sh. Raj Singh and Ors., 225 (2015) DLT 211 and Surender Kumar Vs. Dhani Ram and Ors., 227 (2016) DLT 217. In these judgments, I have referred to and relied upon the ratios of the judgments of the Supreme Court in the cases of Yudhishter Vs. Ashok Kumar, (1987) 1 SCC 204 and Commissioner of Wealth Tax, Kanpur and Others Vs. Chander Sen and Others, (1986) 3 SCC 567 and which hold that inheritance of ancestral properties after passing of the Hindu Succession Act, 1956 does not result in the property being held as HUF property and that the property inherited after 1956 is inherited as a self-acquired property. The different scenarios of how an HUF property comes into existence have been dealt with in detail in the judgment in the case of Sunny (Minor) & Anr. (supra) with reference to pre 1956 and post 1956 positions. Also, general and vague averments without specifying what were the ancestral properties inherited and that too without Civil Suit No. 381/24 Judgment dt. 25.03.2025 Page no. 16 of 31 stating that they were inherited by a person before 1956 cannot result in creation of HUF and its properties and which aspect I have dealt in the judgment passed recently titled as Mrs. Saroj Salkan Vs. Mrs. Huma Singh and Ors. The relevant paras of the judgment in the case of Surender Kumar (supra) are paras 4 to 13 and these paras read as under and which also reproduce the ratios of the earlier judgments of the Supreme Court:-

"4. Plaintiff claims that as a son of defendant no.1 and as a grandson of late Sh. Jage Ram, plaintiff is entitled to his share as a coparcener in the aforesaid suit properties on the ground that the properties when they were inherited by late Sh. Jage Ram were joint family properties, and therefore, status as such of these properties as HUF properties have continued thereby entitling the plaintiff his rights in the same as a coparcener.

The Supreme Court around 30 years back in the judgment in the case of Commissioner of Wealth Tax, Kanpur and Others Vs. Chander Sen and Others, (1986) 3 SCC 567, held that after passing of the Hindu Succession Act, 1956 the traditional view that on inheritance of an immovable property from paternal ancestors up to three degrees, automatically an HUF came into existence, no longer

remained the legal position in view of Section 8 of the Hindu Succession Act, 1956. This judgment of the Supreme Court in the case of Chander Sen (supra) was thereafter followed by the Supreme Court in the case of Yudhishter Vs. Ashok Kumar, (1987) 1 SCC 204 wherein the Supreme Court reiterated the legal position that after coming into force of Section 8 of the Hindu Succession Act, 1956, inheritance of ancestral property after 1956 does not create an HUF property and inheritance of ancestral property after 1956 therefore does not result in creation of an HUF property.

In view of the ratios of the judgments in the cases of Chander Sen (supra) and Yudhishter (supra), in law ancestral property can only become an HUF property if inheritance is before 1956, and such HUF property therefore which came into existence before 1956 continues as such even after 1956. In such a case, since an HUF already existed prior to 1956, thereafter, since the same HUF with its properties continues, the status of joint Hindu family/HUF properties continues, and only in such Civil Suit No. 381/24 Judgment dt. 25.03.2025 Page no. 17 of 31 a case, members of such joint Hindu family are coparceners entitling them to a share in the HUF properties.

On the legal position which emerges pre 1956 i.e before passing of the Hindu Succession Act, 1956 and post 1956 i.e after passing of the Hindu Succession Act, 1956, the same has been considered by me recently in the judgment in the case of Sunny (Minor) & Anr. vs. Sh. Raj Singh & Ors., CS(OS) No.431/2006 decided on 17.11.2015. In this judgment, I have referred to and relied upon the ratio of the judgment of the Supreme Court in the case of Yudhishter (supra) and have essentially arrived at the following conclusions:-

(i) If a person dies after passing of the Hindu Succession Act, 1956 and there is no HUF existing at the time of the death of such a person, inheritance of an immovable property of such a person by his successors-in-interest is no doubt inheritance of an „ancestral property but the inheritance is as a self-acquired property in the hands of the successor and not as an HUF property although the successor(s) indeed inherits „ancestral property i.e a property belonging to his paternal ancestor.

(ii) The only way in which a Hindu Undivided Family/joint Hindu family can come into existence after 1956 (and when a joint Hindu family did not exist prior to 1956) is if an individual's property is thrown into a common hotchpotch. Also, once a property is thrown into a common hotchpotch, it is necessary that the exact details of the specific date/month/year etc of creation of an HUF for the first time by throwing a property into a common hotchpotch have to be clearly pleaded and mentioned and which requirement is a legal requirement because of Order VI Rule 4 CPC which provides that all necessary factual details of the cause of action must be clearly stated. Thus, if an HUF property exists because of its such creation by throwing of self-acquired property by a person in the common hotchpotch, consequently there is

entitlement in coparceners etc to a share in such HUF property.

(iii) An HUF can also exist if paternal ancestral properties are inherited prior to 1956, and such status of parties qua the properties has continued after 1956 with respect to properties inherited prior to 1956 from paternal ancestors.

Once that status and position continues even after 1956; of Civil Suit No. 381/24 Judgment dt. 25.03.2025 Page no. 18 of 31 the HUF and of its properties existing; a coparcener etc will have a right to seek partition of the properties.

(iv) Even before 1956, an HUF can come into existence even without inheritance of ancestral property from paternal ancestors, as HUF could have been created prior to 1956 by throwing of individual property into a common hotchpotch. If such an HUF continues even after 1956, then in such a case a coparcener etc of an HUF was entitled to partition of the HUF property."

36.Thus, from deducing legal principles from the aforesaid judgment, it can be said that it is not enough to aver a mantra, so to say, in the plaint simply that a joint Hindu family or HUF exists. Detailed facts as required by Order VI Rule 4 CPC as to when and how the HUF properties have become HUF properties must be clearly and categorically averred. Such averments have to be made by factual references qua each property claimed to be an HUF property as to how the same is an HUF property, and, in law generally bringing in any and every property as HUF property is incorrect as there is known tendency of litigants to include unnecessarily many properties as HUF properties, and which is done for less than honest motives. Whereas prior to passing of the Hindu Succession Act, 1956 there was a presumption as to the existence of an HUF and its properties, but after passing of the Hindu Succession Act, 1956 in view of the ratios of the judgments of the Supreme Court in the cases of Chander Sen (supra) and Yudhishter (supra) there is no such presumption that inheritance of ancestral property creates an HUF, and therefore, in such a post 1956 scenario a mere ipse dixit statement in the plaint that an HUF and its Civil Suit No. 381/24 Judgment dt. 25.03.2025 Page no. 19 of 31 properties exist is not a sufficient compliance of the legal requirement of creation or existence of HUF properties inasmuch as it is necessary for existence of an HUF and its properties that it must be specifically stated that as to whether the HUF came into existence before 1956 or after 1956 and if so how and in what manner giving all requisite factual details. It is only in such circumstances where specific facts are mentioned to clearly plead a cause of action of existence of an HUF and its properties, can a suit then be filed and maintained by a person claiming to be a coparcener for partition of the HUF properties.

37.Hence, it can be said that defendant has miserably failed to prove that suit property was ancestral property and she is a co owner by virtue of that fact. That, upon the applying the aforesaid legal reasoning to given factual matrix, admittedly the case of defendant is based upon mere bald assertions which she has failed to substantiate with any sort of evidence be it oral or documentary. It is pertinent to mention here that defendant's side has failed to ask even a single question or suggestion qua the nature of the suit property from the plaintiff/PW1. Thus, defendant's side made a fatal mistake in not putting her defence qua ancestral property to the plaintiff when he entered into witness box, hence completely discredited the defendant's version that the suit property is a

ancestral property.

38. In view of the aforesaid discussion, it can be said that defendant has failed to prove that she was the co owner with the plaintiff by virtue of suit property being an ancestral property. Accordingly, the aforesaid issue is Civil Suit No. 381/24 Judgment dt. 25.03.2025 Page no. 20 of 31 decided in favour of plaintiff and against the defendant. Issue no.2: Whether the defendant is having right of ownership over one room set situated in the said property (in short, the suit property) being her matrimonial home? OPD

39. Further, it was argued on the behalf of the defendant that present suit is not maintainable since she being the widow of deceased husband (plaintiff's son), she has every right to stay in the suit property which is her matrimonial home, therefore plaintiff has no right to evict her under the garb of the permissive license as the defendant has cohabited with the plaintiff's son at the suit property after her marriage with him. It was further argued that plaintiff should not be allowed to dispossess defendant as well as her daughter from their lawful possession of the suit property.

40. It is relevant to mention the judgment passed by the Hon'ble High Court of Delhi in the case titled as, "

Madalsa Sood vs Maunicka Makkar & Anr. on 10 December, 2021 wherein it discussed precisely the same law point, which is being argued on the behalf of the defendant. The relevant paragraphs of the judgment is reproduced as under:

"14. It would be apposite to reproduce the view taken by the Supreme Court in Satish Chander Ahuja (supra) on what would satisfy the need to adopt procedure established by law, to seek the eviction of an "aggrieved person".

"124. Drawing the analogy from the above case, we are of the opinion that the expression "save in accordance with the procedure established by law", in Section 17(2) of the 2005 Act contemplates the proceedings in the court of competent jurisdiction. Thus, suit for mandatory and permanent injunction/eviction or possession by the owner Civil Suit No. 381/24 Judgment dt. 25.03.2025 Page no. 21 of 31 of the property is maintainable before a competent court. We may further notice that in sub-section (2) the injunction is "shall not be evicted or excluded from the shared household ... save in accordance with procedure established by law". Thus, the provision itself contemplates adopting of any procedure established by law by the respondent for eviction or exclusion of the aggrieved person from the shared household. Thus, in appropriate case, the competent court can decide the claim in a properly instituted suit by the owner as to whether the women need to be excluded or evicted from the shared household. One most common example for eviction and exclusion may be when the aggrieved person is provided same level of alternate accommodation or payment of rent as contemplated by Section 19 sub-section (f) itself. There may be cases where the plaintiff can successfully prove before the competent court that the claim of the plaintiff for eviction of the respondent is

accepted. We need not ponder for cases and circumstances where the eviction or exclusion can be allowed or refused. It depends on facts of each case for which no further discussion is necessary in the facts of the present case. The High Court in the impugned judgment has also expressed opinion that suit filed by the plaintiff cannot be held to be non-maintainable with which conclusion we are in agreement."

(emphasis added) Nor does the right of residence allowed to aggrieved person extend to her insisting on the right of residence in a particular premises. Section 19 of the DV Act provides for an alternate accommodation being given to the aggrieved person of the same level in certain circumstances. In fact even in Satish Chander Ahuja (supra) relied upon by the learned counsel for the defendants, the judgment of a Division Bench of this Court in Evenet Singh Vs. Prashant Chaudhari 2011 SCC OnLine Del 4651 in para 14 was quoted with approval as under:

"14. It is apparent that clause (f) of sub-section (1) of Section 19 of the Act is intended to strike a balance between the rights of a daughter-in-law and her in-laws, if a claim to a shared residence by the daughter-in-law pertains to a building in which the matrimonial home was set up belongs to her mother-in-law or father-in-law."

Civil Suit No. 381/24 Judgment dt. 25.03.2025 Page no. 22 of 31 The Supreme Court in para 90 of its judgment in Satish Chander Ahuja (supra) further observed as under:

"90. Before we close out discussion on Section 2(s), we need to observe that the right to residence under Section 19 is not an indefeasible right of residence in shared household especially when the daughter-in-law is pitted against aged father-in-law and mother-in-law. The senior citizens in the evening of their life are also entitled to live peacefully not haunted by marital discord between their son and daughter-in-law. While granting relief both in application under Section 12 of the 2005 Act or in any civil proceedings, the Court has to balance the rights of both the parties. The directions issued by the High Court in para 56 adequately balance the rights of both the parties."

(emphasis added).

41. In the light of findings given by the Hon'ble High Court of Delhi, the aforesaid contention raised by the defendant qua her indefeasible right to stay in the suit property on the ground that the same is being matrimonial home is hereby dismissed. Hence, aforesaid issue is decided in favour of plaintiff and against the defendant.

ISSUE NO.3: Whether the defendant is a licensee of plaintiff in respect of the suit property? OPP

ISSUE NO.4: Whether plaintiff is entitled to get permanent injunction, as prayed for? OPP

ISSUE NO.5: Whether plaintiff is entitled to get mandatory injunction, as prayed for? OPP

42. The aforesaid issues are taken up together as they are interconnected with each other. In order to avoid repetition and confusion, all the aforesaid issues are decided together. The onus to prove the

aforesaid issues are upon the plaintiff.

43.It is relevant to mention the landmark judgment passed by the Hon'ble Supreme Court of India in the case titled as Civil Suit No. 381/24 Judgment dt. 25.03.2025 Page no. 23 of 31 "Sant Lal Jain vs Avtar Singh 1985 AIR 857", wherein it is discussed the scope of relief for eviction in the cases of licensor-licensee relationship. The relevant paragraphs of judgment is reproduced as under:

".... In K.K. Verma & Anr. v. Union of India & Anr.,(13 Chagla, C.J. presiding over a Division Bench has observed that in India a landlord can only eject his erstwhile tenant by recourse to law and by obtaining a decree for ejectment. In Milkha Singh v. Dvna & Ors.,(2) it has (1) AIR 1954 Bombay 358 (2) AIR 1964 Jammu & Kashmir

99. been observed that the principle once a licensee always a licensee would apply to all kinds of licences and that it cannot be said that the moment the licence it terminated, the licensee-s possession becomes that of a trespasser. In that case, one of us (Murtaza Fazal Ali, J.) as he then was speaking for the Division Bench has observed:

"After the termination of licence, the licensee is under clear obligation to surrender his possession to the owner and if he fails to do so, we do not see any reason why the licensee cannot be compelled to discharge this obligation by way of a mandatory injunction under s. 55 of the Specific Relief Act. We might further mention that even under English law a suit for injunction to evict a licensee has always been held to be maintainable.

Where a licensor approaches the court for an injunction within a reasonable time after the licence is terminated, he is entitled to the injunction...."

44.Hence, it can be said that for availing the relief of mandatory injunction, it is essential to establish the existence of jural relationship of licensor and licensee between the parties and the termination of licensee either by lapse of time or by notice served by the licensor.

45.Further, it is relevant to mention Section 101 of the Indian Evidence Act, 1872 which defines "burden of proof" and laid down that the burden of proving a fact always lying Civil Suit No. 381/24 Judgment dt. 25.03.2025 Page no. 24 of 31 upon the person who asserts the facts. Until such burden is discharged, the other party is not required to be called upon to prove his case. The court has to examine as to whether the person upon whom the burden lies has been able to discharge his burden. Until he arrives at such conclusion, he cannot proceed on the basis of weakness of other party. Further, Section 58 of the Indian Evidence Act contained that no fact need to be proved in any proceedings which parties thereto or their agents agree to admit at the herein, or which, before the hearing, they agree to admit by any writing under their hands or which by any rule of pleadings enforce at the time they are deemed to have admitted by their pleadings.

46.The basic premise of the plaintiff's case is that he is the absolute and lawful owner of the suit property and permitted the defendant to reside in one room set on the first floor of suit property on the license basis after her marriage to the plaintiff's son. It was further submitted that defendant used to come to suit property only for one day per week after her marriage and never resided permanently with his son in aforesaid portion of the suit property. Further, it was submitted that upon the death of the plaintiff's son, defendant has rarely visited the suit property and has locked her portion of suit property in order to extort some money from the plaintiff. It was submitted on the behalf of the plaintiff that he is under constant apprehension that defendant can sell her portion of suit property to third party therefore he was constrained to file the present suit for seeking mandatory and Civil Suit No. 381/24 Judgment dt. 25.03.2025 Page no. 25 of 31 permanent injunction.

47.Further, in order to prove his claim of ownership over the suit property, apart from himself(PW1), plaintiff has also examined PW2 Sh. Ratan Singh which deposed that plaintiff and himself purchased their respective plots from the same owner on the same day and also deposed the factum relating to consideration amount of Rs. 3000/- was paid by the plaintiff to the owner for purchasing the suit property in the year 1980 in his presence.

48.During examination in chief of the plaintiff, he deposed the contents of his plaint in his evidence affidavit ie Ex. PW1/A. Further, plaintiff has also remained fairly consistent to his version in his cross-examination, since defendant' side failed to elicit any major contradiction from him, therefore was unable to impeach his credibility as witness. Further, plaintiff was also able to establish and prove his better possessory title of the suit property on the basis of documentary evidence i.e. copy of GPA, copy of agreement to sell and affidavit Ex.PW 1/1 (OSR),copy of receipt Ex. PW1/2 (OSR) which was executed between plaintiff and previous seller of the suit property. Further, plaintiff have also filed documents such as copy of Aadhar Card, Voter ID card, Sr. Citizen Card and PAN Card exhibited collectively Ex. PW1/3 (Colly) (OSR) in order to show the actual possession of the suit property.

49.It is pertinent to mention here that defendant failed to ask again even a single question or suggestion qua the better possessory title of the plaintiff or questioned his documents placed on record in his entire cross Civil Suit No. 381/24 Judgment dt. 25.03.2025 Page no. 26 of 31 examination, thus it can be said that the testimony of the plaintiff went unrebutted qua his title over the suit property. Further, it is significant to note that defendant in her cross examination admitted she was permitted to live in the suit property by her father in law ie plaintiff, thus admitting the gratuitous stay in the suit property.

50.Thus, it can be said that plaintiff has been successful prima facie in establishing his better possessory title over the suit property on the basis of aforesaid documents placed on record by him and admissions made by the defendant.

51.Therefore, in the light of discussion in afore-going paras, it can be said that the plaintiff has better possessory title of the suit property and there is nothing on record to infer that the defendant has any interest, title or claim over the suit property. Further, it is relevant to mention that all the

contentions regarding the claims of defendant qua right in the suit property has already been dismissed in aforementioned paras of the judgment and same has not been repeated here. Thus the only inference which can be drawn in view of the pleadings and evidence led is that the plaintiff is entitled to the possession of the same and the position of defendant cannot be better than licensee as she has not put any other defence for explaining her possession of the suit property. Since, the license of defendant has been terminated by the legal notice dated 21.07.2020, which was duly served upon the defendant, as reply to that legal notice Ex. PW1/8 is also on record, therefore the plaintiff is entitled to possession of the suit property from the licensee defendant Rani. Accordingly, issue no. 3 to 5 Civil Suit No. 381/24 Judgment dt. 25.03.2025 Page no. 27 of 31 are decided in the favour of the plaintiff and against the defendant.

ISSUE NO.6: Whether plaintiff is entitled to get mesne profit at the rate of Rs.6,000/-p.m. for use and occupation of the suit property w.e.f. termination of licence of defendant through legal notice dated 21.07.2020 till handing over the possession of the suit property?

52.The status of the defendant as licensee was terminated by the plaintiff vide legal notice dated 21.07.2020. Further, it was specifically averred in the legal notice that in case defendant fails to vacate the premises within 15 days from the date of receipt of the notice, then she will be liable to pay the mesne profits in respect of portion of the suit property @ Rs. 6000/- per month held by her to the plaintiff. The defendant has failed to show her lawful possession and thus, the plaintiff is entitled to mesne profits/use and occupation charges from 05.08.2020 ie 15 days from the receipt of notice.

53.At this juncture, it will be appropriate to place reliance upon the judgment passed by the Hon'ble High Court of Delhi in the case of Arya Orphanage Vs. Mr. Alfred G Wuerfel CS(OS) 2439/2001 dated 27.11.2008 wherein it was held that mesne profits are to be determined on account wrongful continuation of occupation after termination of tenancy / license and the same should be computed at the rate which the property might have fetched at the relevant time.

54.The plaintiff has prayed for the amount of Rs. 6000/- per month on the account of mesne profits of the suit property held by the defendant from the date of termination of license vide legal notice dated 21.07.2020 till the handing Civil Suit No. 381/24 Judgment dt. 25.03.2025 Page no. 28 of 31 over the possession of the suit property.

55.In the present matter the plaintiff has not led any specific evidence in respect of the calculation done by him for calculating mesne profits @ Rs. 6000/- per month in respect of portion of suit property. Plaintiff has simply pleaded and deposed that he is entitled to mesne profits at the rate of Rs. 6000/- per month qua the portion of the suit property held by the defendant. However, in the case of M.C. Aggarawal Vs. Sahara India 183 (2011)DLT 105, the Hon'ble High Court of Delhi has been pleased to hold that in such circumstances, the court could take resort to the provisions of Section 57 and 114 of the Indian Evidence Act and grant appropriate relief.

56.In the present matter, admittedly the defendant has one room set on the first floor of the suit property ie House no. RZH 63-A, Gali No. 9, Raghu Nagar, New Delhi measuring 50 square yards

out of khasra number 18/23 situated in Village Dabri. Further, considering the suit property is being used for residential purpose and prevailing rental rates of properties in nearby areas of the suit property and relations of the parties in the given factual matrix, In the opinion of this Court, the ends of justice will be met if the prayer for mesne profits is allowed at the rate of Rs 3000/- in respect of suit property from 05.08.2020. I am, therefore, inclined to grant mesne profits to the plaintiff at the rate of Rs. 3000/- per month from date 05.08.2020 till the date of vacation of the suit property by the defendant.

57.Further, in respect of interest on mesne profits, the Hon'ble Civil Suit No. 381/24 Judgment dt. 25.03.2025 Page no. 29 of 31 High Court of Delhi in the case of Arya Orphanage (supra) was pleased to hold that interest is an integral part of mesne profits and therefore the same has to be allowed in the computation of mesne profits itself. Plaintiff would thus be entitled to grant of interest on mesne profits. I, therefore, grant interest to the plaintiff at the rate of 7% per annum on the mesne profits so granted from the date of filing of the suit till the date of gaining possession from defendant. This issue is, therefore, decided accordingly in favour of the plaintiff and against the defendant. RELIEF.

58.In view of the aforesaid discussions and findings, this Court is of the considered opinion that plaintiff has proved his case and therefore, he is entitled for the following relief:

(i) Decree of mandatory injunction passed in favour of the plaintiff and against the defendant Rani for removing her belongings from one room set on the first floor of the plaintiff property i.e. RZH-63A, Gali No.9, Raghu Nagar, New Delhi built on plot measuring 50 square yards out of Kh.No. 18/23, situated in Revenue Estate of Village Dabri, Delhi as mentioned in the red portion of the site plan Ex.PW1/4 within three months from the date of decree.

(ii) The plaintiff is entitled for the decree of mesne profits against the defendant @ Rs. 3000/- per month at the rate of interest 7% per annum from date 05.08.2020 till the date of vacation of the suit property by the defendant.

(iii) Decree of permanent injunction passed in favour of the plaintiff and against the defendant Rani thereby Digitally signed by ANKIT ANKIT Date:

MITTAL MITTAL 2025.03.25 16:58:21 +0530 Civil Suit No. 381/24 Judgment dt. 25.03.2025 Page no. 30 of 31 restraining her or any other person claiming through her from parting with the possession of the suit property i.e. one room set on the first floor of the plaintiff property bearing no. RZH-63A, Gali No.9, Raghu Nagar, New Delhi built on plot measuring 50 square yards out of Kh.No. 18/23, situated in Revenue Estate of Village Dabri, Delhi as mentioned in the red portion of the site plan Ex.PW1/4, to any third person apart from the plaintiff and also defendant is permanently restrained from interfering in the peaceful enjoyment of remaining portion of the first floor of the suit property.

(iv) The plaintiff is also entitled for costs of the suit.

59. Decree sheet be drawn accordingly after the payment of deficient court fees, if any.

60. File be consigned to record room after necessary compliance.

ANNOUNCED IN THE OPEN Digitally COURT ON 25.03.2025.

signed by ANKIT ANKIT Date:

MITTAL MITTAL 2025.03.25 16:58:34 +0530 (ANKIT MITTAL) CIVIL
JUDGE-01(SW)/DWARKA COURTS NEW DELHI Civil Suit No. 381/24 Judgment
dt. 25.03.2025 Page no. 31 of 31